

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBC039399: HEATHER SALTER vs HYUNDAI MOTOR AMERICA

07/14/2026 in Department 44

Demurrer to Plaintiff's First Amended Complaint & Motion to Strike

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

MOTIONS:

- 1) Defendant Hyundai Motor America's ("Defendant") Demurrer to plaintiff Heather Salter's ("Plaintiff") First Amended Complaint ("FAC") ("Demurrer")
- 2) Defendant's Motion to Strike Portions of Plaintiff's FAC ("Motion")

Tentative Ruling:

Defendant's Demurrer is OVERRULED and the Motion is DENIED.

Defendant shall answer the FAC within 20 days.

The Court continues the mandatory appearance case management conference to **September 14, 2026 at 8:35 a.m.**

Plaintiff shall give notice.

Discussion:

Plaintiff purchased a 2024 Hyundai Palisade on October 2, 2023, and alleges the vehicle suffers from an engine defect. Plaintiff filed this lawsuit on March 3, 2025 suing the vehicle's manufacturer, Defendant. Plaintiff asserted 4 causes of action under the Song-Beverly Act for breaches of the express and implied warranties, failure to provide sufficient repair facilities or literature, failure to make timely repairs, and a fifth cause of action for fraud by concealment.

On November 4, 2025, the Court denied Defendant's motion to compel the matter to binding arbitration.

On November 19, 2025, Defendant demurred to the March 3, 2025 complaint, and filed a motion to strike. Before these motions were heard, Plaintiff filed the operative pleading with the First Amended Complaint on February 9, 2026 ("FAC"). The FAC reasserts the same five causes of action, and adds factual allegations at paragraphs 8 – 13, summarized as follows: the selling dealership is Westlake Coach Company LLC and Defendant's authorized dealer; the authorized dealership conveys information to consumer's at Defendant's direction; Plaintiff reviewed Defendant's marketing and advertising materials, none of which disclosed the engine defect; Defendant profited from the sale; the alleged repair history is not exhaustive and will be learned in discovery; and, the claimed vehicle nonconformities to include stalling, complete shutdown while stopping, difficulty starting and restarting the engine requiring engine replacement, blank or frozen infotainment system, failure to connect smart devices, and door lock malfunction. (FAC, ¶¶ 8-13.)

On March 17, 2026, Defendant demurred to the FAC with respect to the fifth cause of action for fraud by concealment on grounds that the FAC fails to state facts sufficient to support a cause of action and is barred by the economic loss rule. Defendant also filed a motion to strike paragraph 12 of the FAC and the prayer for punitive damages, which can only be supported by the fraud claim.

The limited role of a demurrer is to test the legal sufficiency of a complaint. It is long-settled that a demurrer admits all material facts properly pleaded, but not contentions, deductions, or conclusions of law or fact. A court may also consider matters that may judicially noticed. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 976, 994; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (quoting *Serrano v. Priest* (1971) 5 Cal.3d 584, 591.) The complaint is given a reasonable interpretation, and is read as a whole, reading its parts in their context. (*Blank v. Kirwan*, *supra*, 39 Cal.3d at p. 318.)

The Court OVERRULES the demurrer under the reasoning of *Rattigan v Uber Technologies* ((2024) 17 Cal.5th 1 [holding that fraud claim survives if defendant has a tort duty separate from warranty to refrain from alleged conduct, and if so, where plaintiff can establish elements of tort independent of warranty]) and following the dismissal of the petition for review in *Dhital v. Nissan North America, Inc.* (2022) 84 CA5th 828. In this case the allegations are more detailed than those found to be sufficient in *Dhital*.

As to the Motion, Plaintiff has stated a claim for fraudulent concealment. If Plaintiff proves this claim at trial and also makes a showing by clear and convincing evidence that Defendant has acted with oppression, fraud, or malice, Plaintiff may recover damages under Civil Code section 3294, subdivision (a). Accordingly, Defendant's motion to strike is DENIED.